PASCO LARET SUITER & ASSOCIATES
CIVIL ENGINEERING + LAND PLANNING + LAND SURVEYING

May 12, 2020

Tim and Michelle Elliot
6063 Avenida Alteras
Rancho Santa Fe, CA 92067

RE: CIVIL ENGNEERING DESIGN SERVICES FOR PICKEL BALL AT 5076 EL MIRLO, RANCHO SANTA FE, CA.

Dear Tim and Michelle,

Pursuant to your request we have prepared this proposal to furnish civil engineering services on the above referenced property to design the driveway and turnaround grading to meet Rancho Santa Fe Fire Department Standards and also remain under the County criteria requiring a grading permit. The criteria requiring a grading permit from the County of San Diego is that earthwork cannot exceed 200 cubic yards of dirt moved. This means 200 cy cut and 200 cy fill is the limit.

Based on the information provided, we anticipate that this design target is achievable.

The proposed scope of services is outlined in Exhibit A of the enclosed Agreement.

If the proposed scope of services, our estimates and the other terms of the Agreement are to your satisfaction, please sign and return the Agreement to our office.

If you have any questions or comments, please feel free to contact us.

We greatly appreciate the opportunity to offer our services and look forward to working with you.

Sincerely,

Michael H. Smith, PE
Senior Project Manager

PASCO LARET SUITER & ASSOCIATES
CIVIL ENGINEERING + LAND PLANNING + LAND SURVEYING

EXHIBIT A

Scope of Services

TASK 1 GRADING DESIGN FOR PICKLE BALL COURT – LESS THAN 200 CUBIC YARDS

a) Based on the site plan and specific design layout provided by your landscape architect, we will prepare a preliminary grading plan for the purpose of obtaining approval by the Rancho Santa Fe Association as required in the Covenant.

b) Since the goal of this project is to avoid the requirement for a grading permit, no official grading plans will be prepared for processing through or permit issuance by the County of San Diego. However, we will produce a grading and drainage plan to be incorporated into the Landscape drawings to provide accurate grading and drainage design information for construction.

c) Complete the Storm Water Intake form and prepare a Standard Project SWQMP and BMP sheet to accompany the Landscape Plans or any other plans that are required to be processed for building permit issuance as required.

d) Processing for the RSF Association approval is included in the budget for this proposal.

e) If a permit from the county is required, plan check comments review and responses are also included in the budget for this proposal.

We suggest you budget $7,000 for this work. We propose to charge for TASK 1 on a Time and Materials basis per the attached rate schedule (Exhibit B).

Billing is monthly: net 30 days. We reserve the right to stop work on delinquent accounts.

Specifically not included in our scope of work is soils engineering, structural engineering, architectural work, title work (including public notice package), landscape and irrigation plans, location or verification of public and private underground utilities, environmental work and County/Agency fees.

Additional Services:

While not included in our Scope of Work, we will be happy to supply the following services as extra work on an as needed basis and as authorized by you:

A. Hydrology/hydraulics calculations (none anticipated)
B. Formal Hydology/Hydraulics report for submittal and review by County. (not anticipated)
C. Other engineering plans as might be requested to include in your plan package. (not anticipated)
D. Field survey work.(by separate agreement if necessary. You can use your previous land surveyor if you chose)
E. Preparation of a Site Plan for use by your consultants.(not anticipated)
F. Work related to an encroachment permit or Right of Way construction permit.

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EXHIBIT B

Principal Engineer	$210/hr
Associate Principal/Senior Project Manager	$180/hr
Project Manager	$165/hr
Senior Project Engineer	$145/hr
Project Engineer	$135/hr
Design Engineer	$125/hr
Principal Land Surveyor	$180/hr
Senior Land Surveyor	$165/hr
Senior Survey Mapper	$150/hr
Senior Survey Technician	$135/hr
Survey Technician	$125/hr
Survey Crew (1 Person Robotic)	$210/hr
Survey Crew (2 Person Robotic)	$240/hr
3d Laser Scanning	$295/hr
Processor/Expediter	$ 95/hr
Expert Witness/Depositions/Court Hearings (4hr min)	$400/hr
Advice / Consultation Meeting (2 hr. min.)	TBD

PLEASE NOTE:

1. All outside services, prints, and copies will be billed at cost plus 15%.

2. All work will cease on jobs with accounts past due 30 days.

3. This rate schedule is subject to change due to the granting of wage increases and/or other employer benefits to field or office employees during the lifetime of this agreement on a semi-annual basis.

4. All work requested outside of normal working hours shall be charged at 1.5 times the rates listed above.

AGREEMENT
to engage the services of
PASCO LARET SUITER & ASSOCIATES, INC.
535 North Highway 101, Suite A
Solana Beach, California 92075

THIS AGREEMENT is made in the State of California this **12h DAY OF MAY, 2020** by and between **TIM AND MICHELLE ELLIOT** here after referred to as "Client" and **PASCO LARET SUITER & ASSOCIATES, INC.** here after referred to as "Consultant."

RE: CIVIL ENGINEERING SERVICES FOR PICKLE BALL AT 5076 EL MIRLO, RANCHO SANTA FE.

THE CLIENT AND CONSULTANT FOR MUTUAL BENEFIT AGREE AS FOLLOWS:

A. The Consultant agrees to perform or have performed the following services, per attached **EXHIBIT A.**

B. The Client agrees to compensate Consultant for such services on a Fixed Fee or Time and Materials basis as specified below. Time and Materials shall be according to Consultant's rate schedule in existence as such services are performed.

Task 1 ……...….$7,000.00 (T&M)

C. Work outside the defined scope of work will be considered "extra work" and will be billed on a Time and Materials basis per the prevailing Rate schedule, per attached **EXHIBIT B**.

D. Payments for such fees shall be required as **follows**:

Please include a retainer in the amount of $0.00
Balance due upon receipt of monthly invoice; net 30 days.

E. WE HAVE READ AND UNDERSTAND THE STANDARD PROVISIONS SET FORTH ON **EXHIBIT C** OF THIS AGREEMENT AND WE AGREE THAT THEY ARE PART OF THIS AGREEMENT.

In CONSIDERATION of the above, this Agreement is made and intended to be binding upon the parties hereto and supersedes any prior Agreement or obligation, written or implied.

CONSULTANT

By_____
Michael Smith
Date 5-12-2020

CLIENT

By_____
Tim or Michelle Elliot
Date_____

Client's Billing Address:

_____

_____

Client's Tel. #_____

E- Mail _____

EXHIBIT C

STANDARD PROVISION OF AGREEMENT

THE CLIENT AND CONSULTANT AGREE THAT THE FOLLOWING PROVISIONS SHALL BE A PART OF THEIR AGREEMENT:

1. THE CLIENT BINDS HIMSELF, HIS PARTNERS, SUCCESSORS, EXECUTORS, ADMINISTRATORS, AND ASSIGNS TO THE CONSULTANT TO THIS AGREEMENT IN RESPECT TO ALL OF THE TERMS AND CONDITIONS OF THIS AGREEMENT.

2. IN THE EVENT THAT DUE TO CHANGE OF POLICY OF GOVERNMENTAL AGENCIES AFTER THE DATE SET FORTH BELOW THE CONSULTANT'S SIGNATURE HEREIN, IF ADDITIONAL OFFICE OR FIELD WORK IS REQUIRED, THE SAID ADDITIONAL WORK SHALL BE PAID FOR BY CLIENT AS EXTRA WORK.

3. REVISIONS TO MAPS AND/OR PLANS REQUESTED BY CLIENT, OTHER CONSULTANTS, GOVERNMENTAL AGENCIES OR PRIVATE AGENCIES ARE EXTRA WORK AND SHALL BE PAID FOR BY CLIENT AS EXTRA WORK.

4. BILLING RATES ARE SUBJECT TO ADJUSTMENT JANUARY 1 AND JUNE 1 OF EACH YEAR. ANY INCREASES (OR DECREASES) SHALL BE APPLIED TO ALL REMAINING COMPENSATION.

5. THE CLIENT SHALL PAY THE COSTS OF CHECKING AND INSPECTION FEES, ZONING AND ANNEXATION APPLICATION FEES, ASSESSMENT FEES, SOILS CONSULTING FEES, SOILS TESTING FEES, APPEALS FEES, AMENDMENT FEES, AERIAL TOPOGRAPHY FEES, AND ALL OTHER FEES, PERMITS, BOND PREMIUMS, TITLE COMPANY CHARGES, BLUEPRINTS AND REPRODUCTIONS, AND ALL OTHER CHARGES NOT SPECIFICALLY COVERED BY THE TERMS OF THIS AGREEMENT.

6. ALL MATERIALS, INCLUDING BUT NOT LIMITED TO DOCUMENTS, DRAWINGS, PLANS, SPECIFICATIONS, OTHER ORIGINAL DOCUMENTS AS INSTRUMENTS OF SERVICE AND REPRODUCTIONS OF THE SAME, ARE AND SHALL REMAIN THE PROPERTY OF THE CONSULTANT. CLIENT ACKNOWLEDGES THAT SAID DOCUMENTS, DRAWINGS, PLANS AND SPECIFICATIONS, WHETHER IN WRITTEN, GRAPHIC OR ELECTRONIC FORM ARE INSTRUMENTS OF PROFESSIONAL SERVICE AND NOT PRODUCTS. PROVIDED CLIENT'S ACCOUNT IS NOT PAST DUE, AN ELECTRONIC COPY AND USE OF THE INSTRUMENTS OF SERVICE, OR COPIES, WILL BE MADE AVAILABLE TO THE CLIENT UPON REQUEST.

7. SHOULD LITIGATION BE NECESSARY TO ENFORCE ANY TERM OR PROVISION OF THIS AGREEMENT, OR TO COLLECT ANY PORTION OF THE AMOUNT PAYABLE UNDER THIS AGREEMENT, THEN ALL LITIGATION AND COLLECTION EXPENSES, WITNESS FEES AND COURT COSTS, AND ATTORNEY'S FEES SHALL BE PAID TO THE PREVAILING PARTY.

8. INVOICES WILL BE ISSUED MONTHLY. PAYMENT IS DUE UPON RECEIPT OF THE CONSULTANT'S INVOICE. IF PAYMENT IS NOT RECEIVED WITHIN THIRTY DAYS FROM THE INVOICE DATE, THE INVOICE IS CONSIDERED PAST DUE AND THE CLIENT AGREES TO PAY A FINANCE CHARGE ON THE PRINCIPAL AMOUNT OF THE PAST DUE ACCOUNT OF ONE AND ONE-HALF PERCENT PER MONTH OR THE MAXIMUM ALLOWED BY LAW, WHICHEVER IS LOWER. ANY ATTORNEY'S FEES OR OTHER COSTS INCURRED IN COLLECTING ANY DELINQUENT AMOUNT SHALL BE PAID BY THE CLIENT. IN THE EVENT PAYMENT FOR AN INVOICE IS PAST DUE, THE CONSULTANT RESERVES THE RIGHT TO SUSPEND PERFORMANCE OF PROFESSIONAL SERVICES. IF THE CLIENT FAILS TO MAKE PAYMENT TO THE CONSULTANT IN ACCORDANCE WITH THE PAYMENT TERMS HEREIN, THIS SHALL CONSTITUTE A MATERIAL BREACH OF THIS AGREEMENT AND SHALL BE CAUSE FOR TERMINATION BY THE CONSULTANT. PAYMENT OF ANY INVOICE BY THE CLIENT TO THE CONSULTANT SHALL BE TAKEN TO MEAN THAT THE CLIENT IS SATISFIED WITH THE CONSULTANT'S SERVICES AND IS NOT AWARE OF ANY DEFICIENCIES IN THOSE SERVICES.

9. CLIENT HEREBY AGREES THAT THE BALANCE AS STATED ON THE BILLING FROM THE CONSULTANT TO CLIENT IS CORRECT CONCLUSIVE AND BINDING ON THE CLIENT UNLESS CLIENT WITHIN THIRTY (30) DAYS FROM THE DATE OF THE MAKING OF THE BILLING NOTIFIES CONSULTANT IN WRITING OF THE PARTICULAR ITEM THAT IS ALLEGED TO BE INCORRECT.

I ACKNOWLEDGE THE ABOVE:_____

Signature Date

10. IF THE PROJECT IS SUSPENDED FOR MORE THAN THIRTY CALENDAR DAYS IN THE AGGREGATE, THE CONSULTANT SHALL BE COMPENSATED FOR SERVICES PERFORMED AND CHARGES INCURRED PRIOR TO RECEIPT OF NOTICE TO SUSPEND AND, UPON RESUMPTION, AN EQUITABLE ADJUSTMENT IN FEES TO ACCOMMODATE THE RESULTING DEMOBILIZATION AND REMOBILIZATION COSTS. IN ADDITION, THERE SHALL BE AN EQUITABLE ADJUSTMENT IN THE PROJECT SCHEDULE BASED ON THE DELAY CAUSED BY THE SUSPENSION. IF THE PROJECT IS SUSPENDED FOR MORE THAN NINETY CALENDAR DAYS IN THE AGGREGATE, THE CONSULTANT MAY AT HIS OPTION, TERMINATE THIS WORKING AGREEMENT UPON GIVING NOTICE IN WRITING TO THE CLIENT. IF THE CLIENT FAILS TO MAKE PAYMENTS WHEN DUE OR OTHERWISE IS IN BREACH OF THIS AGREEMENT, THE CONSULTANT MAY SUSPEND PERFORMANCE OF SERVICES UPON FIVE CALENDAR DAYS' NOTICE TO THE CLIENT. THE CONSULTANT SHALL HAVE NO LIABILITY WHATSOEVER TO THE CLIENT FOR ANY COSTS OR DAMAGES AS A RESULT OF SUCH SUSPENSION CAUSED BY ANY BREACH OF THIS AGREEMENT BY THE CLIENT.

11. THIS AGREEMENT MAY BE TERMINATED BY EITHER PARTY AT ANY TIME WITH OR WITHOUT CAUSE UPON SEVEN DAYS' WRITTEN NOTICE. THE CLIENT SHALL WITHIN 10 CALENDAR DAYS OF TERMINATION PAY THE CONSULTANT FOR ALL SERVICES RENDERED AND ALL COSTS INCURRED UP TO THE DATE OF TERMINATION, IN ACCORDANCE WITH THE COMPENSATION PROVISIONS OF THIS AGREEMENT.

12. IN THE EVENT THAT CONSULTANTS' SERVICES AS A PERCIPIENT WITNESS RELATIVE TO THE PROPERTY OR PROJECT ARE REQUESTED BY ANY PARTY, CLIENT AGREES TO COMPENSATE CONSULTANT FOR 100% OF THE TIME SPENT IN SUCH ENDEAVOR, INCLUDING RESEARCH AND TRAVEL TIME. BILLING IS TO BE AT THE HOURLY RATE IN EFFECT AT THE TIME SUCH SERVICES ARE PERFORMED.

13. IN THE EVENT THAT CLIENT INSTITUTES A SUIT AGAINST CONSULTANT BECAUSE OF ANY FAILURE OR ALLEGED FAILURE TO PERFORM, ERROR, OMISSION, OR NEGLIGENCE, AND IF SUCH SUIT IS NOT SUCCESSFULLY PROSECUTED, OR IF IT IS DISMISSED, OF IF VERDICT IS RENDERED FOR CONSULTANT, CLIENT AGREES TO PAY CONSULTANT ANY REASONABLE COSTS OF DEFENSE, INCLUDING ATTORNEY'S FEES, EXPERT WITNESSES' FEES, AND COURT COSTS AND ANY OTHER EXPENSES OF DEFENSE WHICH MAY BE NEEDFUL, IMMEDIATELY FOLLOWING DISMISSAL OF THE CASE OR IMMEDIATELY UPON JUDGMENT BEING RENDERED ON BEHALF OF CONSULTANT.

14. CLIENT SHALL NOT ASSIGN HIS INTEREST IN THIS AGREEMENT WITHOUT THE WRITTEN CONSENT OF THE CONSULTANT AND THE SUCCESSOR.

15. THE CONSULTANT MAINTAINS WORKER'S COMPENSATION AND EMPLOYER'S LIABILITY INSURANCE IN CONFORMANCE WITH APPLICABLE STATE LAW. IN ADDITION, THE CONSULTANT MAINTAINS COMPREHENSIVE GENERAL LIABILITY INSURANCE, ERRORS AND OMISSIONS INSURANCE AND AUTOMOBILE LIABILITY INSURANCE, AND WILL, UPON REQUEST, PROVIDE CERTIFICATES OF INSURANCE EVIDENCING SUCH COVERAGE'S AND ASSOCIATED LIMITS OF LIABILITY. COST OF THIS COVERAGE IS INCLUDED IN THE CONSULTANT'S QUOTED FEES. IF ADDITIONAL COVERAGE'S OR INCREASED LIMITS OF LIABILITY ARE REQUIRED, THE CONSULTANT WILL ENDEAVOR TO OBTAIN THE REQUESTED INSURANCE AND CHARGE SEPARATELY FOR COSTS ASSOCIATED WITH ADDITIONAL COVERAGE(S) OR INCREASED LIMITS.

16. THE CONSULTANT MAKES NO REPRESENTATION CONCERNING THE COST FIGURES MADE IN CONNECTION WITH MAPS, PLANS, SPECIFICATIONS, OR DRAWINGS OTHER THAN THAT ALL COST FIGURES ARE ESTIMATES ONLY AND THE CONSULTANT SHALL NOT BE RESPONSIBLE FOR FLUCTUATIONS IN COST FACTORS.

17. IN THE EVENT OF LITIGATION ON THIS AGREEMENT, THE INTERPRETATION THEREOF, AND ALL DISPUTES OR CONTROVERSIES ARISING HEREUNDER SHALL BE GOVERNED BY THE LAWS OF THE STATE OF CALIFORNIA.

18. THE TERMS AND PROVISIONS OF THIS AGREEMENT SHALL NOT BE CONSTRUED TO ALTER, WAIVER, OR AFFECT ANY LIEN OR STOP NOTICE RIGHTS, WHICH THE CONSULTANT MAY HAVE FOR THE PERFORMANCE OF SERVICES UNDER THIS AGREEMENT.

19. ONE OR MORE WAIVERS OF ANY TERM, CONDITION OR COVENANT BY THE CONSULTANT SHALL NOT BE CONSTRUED BY THE CLIENT AS A WAIVER OF A SUBSEQUENT BREACH OF THE SAME OR ANY OTHER TERM, CONDITION OR COVENANT.

20. IN THE EVENT ANY PROVISION OF THIS AGREEMENT SHALL BE HELD TO BE INVALID AND UNENFORCEABLE, THE OTHER PROVISIONS OF THIS AGREEMENT SHALL BE VALID AND BINDING ON THE PARTIES HERETO.

I ACKNOWLEDGE THE ABOVE:_____

Signature Date

21. THERE ARE NO UNDERSTANDINGS OR AGREEMENTS EXCEPT AS HEREIN EXPRESSLY STATED.

22. ALL AGREEMENTS ON CONSULTANT'S PART ARE CONTINGENT UPON AND CONSULTANT SHALL NOT BE RESPONSIBLE FOR DAMAGES OR BE IN DEFAULT OR BE DEEMED TO BE IN DEFAULT BY REASON OF, ACCIDENTS, ACTS OF GOD AND OTHER DELAYS UNAVOIDABLE OR BEYOND CONSULTANT'S REASONABLE CONTROL, DELAYS CAUSED BY FAILURE OF CLIENT OR CLIENT'S AGENTS TO FURNISH INFORMATION OR TO APPROVE OR DISAPPROVE CONSULTANT'S WORK PROMPTLY OR DUE TO LATE OR SLOW, OR FAULTY PERFORMANCE BY CLIENT, OTHER CONTRACTORS, OR GOVERNMENTAL AGENCIES, THE PERFORMANCE OF WHOSE WORK IS PRECEDENT TO OR CONCURRENT WITH THE PERFORMANCE OF CONSULTANT'S WORK. IN THE CASE OF THIS HAPPENING OR ANY SUCH CAUSE OF DELAY, THE TIME OF COMPLETION SHALL BE EXTENDED ACCORDINGLY.

23. CONSULTANT DOES NOT GUARANTEE THE COMPLETION OR QUALITY OF PERFORMANCE OF CONTRACT OR THE COMPLETION OR QUALITY OF PERFORMANCE OF CONTRACTS BY THE CONSTRUCTION CONTRACTOR OR CONTRACTORS, OR OTHER THIRD PARTIES, NOR IS HE RESPONSIBLE FOR THEIR ACTS OR OMISSIONS.

24. CONSULTANT MAKES NO REPRESENTATIONS CONCERNING SOIL CONDITIONS UNLESS SPECIFICALLY INCLUDED IN WRITING IN THIS AGREEMENT, AND HE IS NOT RESPONSIBLE FOR ANY LIABILITY THAT MAY ARISE OUT OF THE MAKING OR FAILURE TO MAKE SOILS SURVEYS OR SUB-SURFACE SOIL TESTS, OR GENERAL SOIL TESTING.

25. THE CLIENT SHALL PROMPTLY REPORT TO THE CONSULTANT ANY DEFECTS OR SUSPECTED DEFECTS IN THE CONSULTANT'S WORK OR SERVICES OF WHICH THE CLIENT BECOMES AWARE, SO THAT THE CONSULTANT MAY TAKE MEASURES TO MINIMIZE THE CONSEQUENCES OF SUCH A DEFECT. THE CLIENT WARRANTS THAT THE CLIENT WILL IMPOSE A SIMILAR NOTIFICATION REQUIREMENT ON ALL CONTRACTORS IN ANY CLIENT/CONTRACTOR CONTRACT AND SHALL REQUIRE ALL SUBCONTRACTS AT ANY LEVEL TO CONTAIN A LIKE REQUIREMENT. FAILURE BY THE CLIENT, AND THE CLIENT'S CONTRACTORS OR SUBCONTRACTORS TO NOTIFY THE CONSULTANT, SHALL RELIEVE THE CONSULTANT OF THE COSTS OF REMEDYING THE DEFECTS ABOVE THE SUM SUCH REMEDY WOULD HAVE COST HAD PROMPT NOTIFICATION BEEN GIVEN.

26. IN THE EVENT THAT CHANGES ARE MADE IN THE PLANS AND SPECIFICATIONS BY THE CLIENT OR PERSONS OTHER THAN THE CONSULTANT, WHICH AFFECTS THE CONSULTANT'S WORK ANY AND ALL LIABILITY ARISING OUT OF SUCH CHANGES IS WAIVED AS AGAINST THE CONSULTANT AND THE CLIENT ASSUMES FULL RESPONSIBILITY FOR SUCH CHANGES UNLESS THE CLIENT HAS GIVEN CONSULTANT PRIOR NOTICE AND HAS RECEIVED FROM CONSULTANT WRITTEN CONSENT FOR SUCH CHANGES.

27. CONSULTANT MAKES NO REPRESENTATION AS TO THE EXISTENCE OF OR VERIFICATION OF LOCATION OF EXISTING PRIVATE UNDERGROUND UTILITIES.

28. THE CONSULTANT IS NOT RESPONSIBLE, AND LIABILITY IS WAIVED BY THE CLIENT AS AGAINST CONSULTANT, FOR USE BY THE CLIENT OR ANY OTHER PERSON OF ANY PLANS OR DRAWINGS NOT SIGNED BY CONSULTANT.

29. IT IS INTENDED BY THE PARTIES TO THIS AGREEMENT THAT THE CONSULTANT'S SERVICES IN CONNECTION WITH THE PROJECT SHALL NOT SUBJECT THE CONSULTANT'S INDIVIDUAL EMPLOYEES, OFFICERS, OR DIRECTORS TO ANY PERSONAL LEGAL EXPOSURE FOR THE RISKS ASSOCIATED WITH THIS PROJECT. THEREFORE, AND NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED HEREIN, THE CLIENT AGREES THAT AS THE CLIENT'S SOLE AND EXCLUSIVE REMEDY, ANY CLAIM, DEMAND OR SUIT SHALL BE DIRECTED AND/OR ASSERTED ONLY AGAINST THE CONSULTANT, A CALIFORNIA CORPORATION, AND NOT AGAINST ANY OF THE CONSULTANT'S EMPLOYEES, OFFICERS, OR DIRECTORS.

30. THE CLIENT AGREES TO LIMIT THE CONSULTANT'S LIABILITY TO THE CLIENT AND TO ALL CONTRACTORS AND SUBCONTRACTORS ON THE PROJECT, DUE TO PROFESSIONAL NEGLIGENT ACTS, ERRORS OR OMISSIONS OF THE CONSULTANT TO THE SUM OF $50,000 OR THE CONSULTANT'S FEE, WHICHEVER IS GREATER.

31. IN CONSIDERATION OF THE CONSULTANT'S FEE FOR SERVICES, THE CLIENT AGREES THAT THE CONSULTANT WILL PERFORM NO ON-SITE CONSTRUCTION REVIEW FOR THIS PROJECT; THAT SUCH SERVICES WILL BE PROVIDED BY OTHERS; AND THAT THE CLIENT SHALL DEFEND, INDEMNIFY AND HOLD THE CONSULTANT HARMLESS FROM ANY AND ALL LIABILITY, REAL OR ALLEGED, THAT MIGHT BE OCCASIONED BY OTHERS PERFORMING CONSTRUCTION REVIEW FOR THIS PROJECT.

32. CONSULTANT SHALL ONLY ACT AS AN ADVISOR IN ALL GOVERNMENTAL RELATIONS.

33. CONSULTANT MAKES NO WARRANTY, EITHER EXPRESSED OR IMPLIED, AS TO HIS FINDINGS, RECOMMENDATIONS, SPECIFICATIONS, OR PROFESSIONAL ADVICE EXCEPT THAT THE WORK WAS PERFORMED PURSUANT TO GENERALLY ACCEPTED STANDARDS OF PRACTICE IN EFFECT AT THE TIME OF PERFORMANCE.

I ACKNOWLEDGE THE ABOVE:_____
Signature Date

34. THE CLIENT RECOGNIZES THAT BOTH THE CLIENT AND THE CONSULTANT OWE A DUTY OF CARE TO THE PUBLIC THAT REQUIRES THEM TO CONFORM TO APPLICABLE CODES, STANDARDS, REGULATIONS AND ORDINANCES, PRINCIPALLY TO PROTECT PUBLIC HEALTH AND SAFETY. THE CONSULTANT WILL DO HIS BEST TO ALERT THE CLIENT TO ANY MATTER THAT REQUIRES THE CLIENT'S IMMEDIATE ACTION TO PROTECT PUBLIC HEALTH AND SAFETY OR CONFORM TO APPLICABLE CODES, STANDARDS, REGULATION, OR ORDINANCES. SHOULD THEY DECIDE TO DISREGARD THE CONSULTANT'S RECOMMENDATIONS IN THESE RESPECTS, THE CLIENT AGREES THE CONSULTANT HAS THE RIGHT TO EMPLOY HIS BEST JUDGMENT IN DECIDING WHETHER OR NOT TO NOTIFY PUBLIC OFFICIALS OR TAKE OTHER APPROPRIATE ACTION. THE CLIENT AGREES THE CONSULTANT SHOULD NOT BE HELD LIABLE IN ANY RESPECT FOR REPORTING OR FAILING TO REPORT SAID CONDITIONS. ACCORDINGLY, THE CLIENT AGREES TO THE FULLEST EXTENT PERMITTED BY LAW, TO INDEMNIFY AND HOLD THE CONSULTANT HARMLESS FROM ANY CLAIM, LIABILITY OR COST (INCLUDING REASONABLE ATTORNEYS' FEES AND COSTS OF DEFENSE) FOR INJURY OR LOSS ARISING OR ALLEGEDLY ARISING FROM THE CONSULTANT'S NOTIFYING OR FAILURE TO NOTIFY PUBLIC OFFICIALS.

35. LIMITATIONS ON LIABILITY AND INDEMNITIES IN THIS AGREEMENT ARE BUSINESS UNDERSTANDINGS BETWEEN THE PARTIES AND SHALL APPLY TO ALL THE DIFFERENT THEORIES OF RECOVERY, INCLUDING BREACH OF CONTRACT OR WARRANTY, TORT (INCLUDING NEGLIGENCE), STRICT OR STATUTORY LIABILITY, OR ANY OTHER CAUSE OF ACTION. THESE LIMITATIONS ON LIABILITY AND INDEMNITIES WILL NOT APPLY TO ANY LOSSES OR DAMAGES THAT HAVE BEEN FOUND BY A TRIER OF FACT TO HAVE BEEN CAUSED BY THE CONSULTANT'S SOLE OR GROSS NEGLIGENCE OR THE CONSULTANT'S WILLFUL MISCONDUCT. "PARTIES" MEANS THE CLIENT AND THE CONSULTANT, AND THEIR OFFICERS, PARTNERS, EMPLOYEES, AGENTS AND SUBCONSULTANTS. THE PARTIES ALSO AGREE THAT THE CLIENT WILL NOT SEEK DAMAGES IN EXCESS OF THE CONTRACTUALLY AGREED LIMITATION INDIRECTLY THROUGH SUITS WITH OTHER PARTIES WHO MAY JOIN THE CONSULTANT AS A THIRD-PARTY DEFENDANT.

36. THE CLIENT WILL ARRANGE FOR ACCESS TO AND MAKE PROVISIONS FOR THE CONSULTANT TO ENTER UPON PUBLIC AND PRIVATE PROPERTY AS REQUIRED IN THE PERFORMANCE OF PROFESSIONAL SERVICES UNDER THIS AGREEMENT.

37. THE CONSULTANT SHALL NOT BE REQUIRED TO SIGN ANY DOCUMENTS, NO MATTER BY WHOM REQUESTED, THAT WOULD RESULT IN THE CONSULTANT'S HAVING TO CERTIFY, GUARANTEE OR WARRANT THE EXISTENCE OF CONDITIONS WHOSE EXISTENCE THE CONSULTANT CANNOT ASCERTAIN. THE CLIENT ALSO AGREES NOT TO MAKE RESOLUTION OF ANY DISPUTE WITH THE CONSULTANT OR PAYMENT OF ANY AMOUNT DUE TO THE CONSULTANT IN ANY WAY CONTINGENT UPON THE CONSULTANT'S SIGNING ANY SUCH CERTIFICATION.

38. IF THE CONSULTANT FOR ANY REASON IS NOT ALLOWED TO COMPLETE ALL THE SERVICES CALLED FOR BY THIS AGREEMENT, THE CONSULTANT SHALL NOT BE HELD RESPONSIBLE FOR THE ACCURACY, COMPLETENESS OR CONSTRUCTABILITY OF THE CONSTRUCTION DOCUMENTS PREPARED BY THE CONSULTANT IF USED, CHANGED OR COMPLETED BY THE CLIENT OR BY ANOTHER PARTY. ACCORDINGLY, THE CLIENT AGREES TO THE FULLEST EXTENT PERMITTED BY LAW, TO INDEMNIFY AND HOLD HARMLESS THE CONSULTANT, ITS OFFICERS, DIRECTORS, EMPLOYEES AND SUBCONSULTANTS (COLLECTIVELY, CONSULTANT) FROM ANY DAMAGES, LIABILITIES OR COSTS, INCLUDING REASONABLE ATTORNEYS' FEES AND DEFENSE COSTS, ARISING OR ALLEGEDLY ARISING FROM SUCH USE, CHANGE OR COMPLETION BY ANY OTHER PARTY OF ANY CONSTRUCTION DOCUMENTS PREPARED BY THE CONSULTANT.

39. BOTH PARTIES ACKNOWLEDGE THAT THE CONSULTANT'S SCOPE OF SERVICES DOES NOT INCLUDE ANY SERVICES RELATED TO THE PRESENCE OF ANY HAZARDOUS OR TOXIC MATERIALS. IN THE EVENT THE CONSULTANT OR ANY OTHER PARTY ENCOUNTERS ANY HAZARDOUS OR TOXIC MATERIALS, OR SHOULD IT BECOME KNOWN TO THE CONSULTANT THAT SUCH MATERIALS MAY BE PRESENT ON OR ABOUT THE JOBSITE OR ANY ADJACENT AREAS THAT MAY AFFECT THE PERFORMANCE OF THE CONSULTANT'S SERVICES, THE CONSULTANT MAY, AT ITS OPTION AND WITHOUT LIABILITY FOR CONSEQUENTIAL OR ANY OTHER DAMAGES, SUSPEND PERFORMANCE OF ITS SERVICES UNDER THIS AGREEMENT UNTIL THE CLIENT RETAINS APPROPRIATE CONSULTANTS OR CONTRACTORS TO IDENTIFY AND ABATE OR REMOVE THE HAZARDOUS OR TOXIC MATERIALS AND WARRANTS THAT THE JOBSITE IS IN FULL COMPLIANCE WITH ALL APPLICABLE LAWS AND REGULATIONS.

40. ANY DATA SUPPLIED TO CONSULTANT BY THE ARCHITECT OR OTHER CONSULTANTS IS ASSUMED TO BE CORRECT.

I ACKNOWLEDGE THE ABOVE:_____
Signature Date

PRIOR TO PUTTING YOUR PROJECT ON OUR CALENDAR

Please be aware that prior to placing your project on our calendar, we need to have received:

1) The Agreement with your original signature on it, mailed, not faxed

2) Exhibit C with your original signature on it, mailed, not faxed

3) The requested retainer, if applicable

4) Also, if we request the Preliminary Title Report (PR) in our proposal, we would need prior to preparing any exhibits or performing any design work.

At Pasco Laret Suiter & Associates, Inc. we appreciate that you trust us with your projects. We look forward to working with you.

Thank you for your understanding,

The Staff at Pasco Laret Suiter & Associates, Inc.